

Jainullah v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 September 2017 · WRIT - C No. 43858 of 2017 · **Writ consigned; relegated to clause 6.5 or section 127 appeal.**

HEADNOTE

A writ seeking correction of an amount realized either as a theft assessment or as a billing dispute is not entertained. A billing dispute is to be taken to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005; a challenge to an assessment already made lies in appeal under section 127 of the Electricity Act, 2003. Either remedy, if availed, is to be dealt with in accordance with law.

FACTUAL SUMMARY

Jainullah sought a mandamus to correct a demand realized either as a theft assessment or a billing dispute. A recovery citation of 3 January 2014 for Rs 4,02,459 was not challenged. After an FIR under section 138(b) of the Electricity Act, 2003 and High Court bail, the Executive Engineer reduced a Rs 2 lakh compounding amount and required the citation balance. The petitioner alleged the demand treated a 10 HP motor as the load though he had a 7.5 HP motor, and that consumption during disconnection could not be recovered.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Where the consumer essentially raises a billing dispute over a demand, the remedy is to approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ court will not correct the bill. ¶ 1

HOLDING-UNIT · EA2003::127

assessment-appeal-bars-writ

HOLDING

If the consumer questions an assessment already made after an allegation of theft, the remedy is an appeal under section 127 of the Electricity Act, 2003; a writ seeking correction of that amount will not be entertained, without prejudice to that appeal being dealt with in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND IS A BILLING DISPUTE OR A THEFT ASSESSMENT, AND WHETHER THE 10 HP VERSUS 7.5 HP LOAD AND DISCONNECTION-PERIOD CONSUMPTION ARE CORRECTLY CHARGED

The Court left both forums open and did not examine the unchallenged recovery citation of 3 January 2014 on merits. ¶ 1